



U.S. Customs and Border Protection

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PUBLIC VERSION

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RE: EPA Cons. CASE 8201 – Notice of Determination as to Evasion

To the Counsel and Representatives of the above-referenced entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Consolidated Investigation 8201, U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that importers Chasoe World Inc. (Chasoe), Eminent World Trade Inc. (Eminent World), Faster Bat Corp. (Faster Bat), Fine Tune Group Inc. (Fine Tune), Inchoi Group Inc. (Inchoi), Magic King Group Inc. (Magic King), Newway Wind Inc. (Newway), Onerich Gilboal Group Inc. (Onerich), Toyarr Group Inc. (Toyarr), Unitype Trading, Ltd. (Unitype), and Zenith Global Group Inc. (Zenith) (collectively, “the Importers”) entered merchandise covered by the antidumping duty (AD) order A-570-939¹ on tow behind lawn groomers and parts thereof (“TBLG” or “covered merchandise”) from the People’s Republic of China (China) into the customs territory of the United States through evasion. The Importers declared the Chinese-origin TBLGs as type 01 on entry and, as a result, no cash deposits were collected on the covered merchandise. The basis for CBP’s determination is explained below.

I. Background

Allegations

On June 24, 2025, Agri-Fab, Inc. (Agri-Fab or “the Alleger”) submitted an EAPA allegation² alleging that Stove Top Inc. (Stove Top) is evading the *Order*.³ Pursuant to 19 C.F.R. § 101.1, an “importer” may be the consignee, the importer of record, the actual owner of the merchandise, or the transferee of the merchandise. CBP data shows Stove Top is a consignee for shipments entered into the United States where Faster Bat, Newway, and Zenith were named as the importers of record (IOR) of Chinese-origin merchandise.⁴

On June 24, 2025, Agri-Fab also filed an allegation identifying Worldreach Imports, Inc. (Worldreach) as a consignee for shipments from China of merchandise described in the Alleger’s trade data as “lawn sweeper,”⁵ a type of product covered by the *Order*, if towed.⁶

¹ See *Certain Tow Behind Lawn Groomers and Certain Parts Thereof from the People’s Republic of China: Antidumping Duty Order*, 74 Fed. Reg. 38,395 (Dep’t Commerce, August 3, 2009) (the *Order*). There was originally a companion countervailing duty (CVD) order, C-570-940, however, it was revoked on September 23, 2014. See *Tow Behind Lawn Groomers and Parts and Thereof from the People’s Republic of China: Final Results of Sunset Review and Revocation of Countervailing Duty Order*, 79 Fed. Reg. 56,769 (Dep’t of Commerce, September 23, 2014). As a result, there is no CVD order in this case.

² See Agri-Fab, Inc.’s letter, “RE: Agri-Fab, Inc.; EAPA Allegation,” dated June 24, 2025 (Stove Top Allegation) at 5. Agri-Fab is a U.S. manufacturer of the domestic like product; therefore, it qualifies as an interested party pursuant to 19 U.S.C. § 1517(a)(6) and 19 C.F.R. § 165.1. See the Stove Top Allegation at 3-4 and Attachments K-1 and K-2. See also 19 U.S.C. § 1517(a)(6) and 19 C.F.R. § 165.1.

³ See the *Order*.

⁴ See Post-Receipt Report for EAPA 8201, dated August 26, 2025, Post-Receipt Report for EAPA 8212, dated August 26, 2025, and Post-Receipt Report for EAPA 8213, dated August 26, 2025. We refer collectively to Faster Bat, Newway, and Zenith as “the Stove Top Importers.”

⁵ See Agri-Fab’s letter, “RE: Agri-Fab, Inc.; EAPA Allegation,” dated June 24, 2025 (Worldreach Allegation) at 5 and Attachment I-3.

⁶ See the *Order*.

Current CBP data shows Worldreach is a consignee for shipments of Chinese merchandise entered into the United States where Chasoe, Eminent World, Fine Tune, Inchoi, Magic King, Onerich, and Toyarr were named as the IORs.⁷

Also on June 24, 2025, Agri-Fab filed an EAPA allegation⁸ claiming that Unitype is evading the *Order*.⁹ According to CBP systems, Unitype is the IOR for entries of Chinese merchandise entered into the customs territory of the United States.¹⁰ Data from the Unitype Allegation also indicates that Unitype has received shipments of Chinese merchandise described on bills of lading (BOL) as “lawn sweepers,”¹¹ a type of merchandise covered by the *Order*, if towed.¹²

Description of the Alleged Evasion Scheme

Agri-Fab claimed that TBLGs covered by the *Order* are being imported into the United States from China for sale to retail customers through online marketplaces.¹³ Citing the *Order*, Agri-Fab explained that covered merchandise includes tow-behind lawn sweepers, tow-behind lawn dethatchers, tow-behind lawn spreaders, and tow-behind aerators.¹⁴ The Allegations also claimed that the prices offered for TBLGs on online e-commerce platforms are far too low to include the cost of AD duties paid in the covered merchandise.¹⁵ The Allegations then claimed that Stove Top, Unitype, and Worldreach have each received shipments of Chinese “lawn sweepers” and provided bill of lading (BOL) data to support this contention. According to the Allegations, this constitutes evidence that the Importers are likely importing covered merchandise (*i.e.*, TBLGs of Chinese-Origin).¹⁶

Agri-Fab also alleged that the Consignees and their IORs failed to pay duties on their importations of covered merchandise. Agri-Fab supported this contention by first noting that the China-wide rate in effect for all other manufacturers and exporters of TBLGs from China is 386.28 percent and the lowest separate AD rate is currently 154.72 percent.¹⁷ Agri-Fab’s allegation then provided a table for seven different models of TBLGs advertised for sale on e-

⁷ See Post-Receipt Report for EAPA 8203, dated August 26, 2025, Post-Receipt Report for EAPA 8211, dated August 26, 2025, Post-Receipt Report for EAPA 8214, dated August 26, 2025, Post-Receipt Report for EAPA 8215, dated August 26, 2025, Post-Receipt Report for EAPA 8216, dated August 26, 2025, Post-Receipt Report for EAPA 8217, dated August 26, 2025, and Post-Receipt Report for EAPA 8218, dated August 26, 2025. We refer collectively to Chasoe, Eminent World, Fine Tune, Inchoi, Magic King, and Toyarr as “the Worldreach Importers.”

⁸ See Agri-Fab’s letter, “Re: Agri-Fab, Inc.; EAPA Allegation,” dated June 24, 2025 (Unitype Allegation). We refer to the Unitype Allegation, the Stove Top Allegation, and the Worldreach Allegation as “the Allegations.” We also refer collectively to the Stove Top Importers, the Worldreach Importers, and Unitype as “the Importers.” We refer collectively to Stove Top, Worldreach, and Unitype as “the Consignees.”

⁹ See the *Order*.

¹⁰ See Post-Receipt Report for EAPA 8202, dated August 26, 2025. We refer collectively to the Post-Receipt Reports for EAPA Case Numbers 8201, 8202, 8203, 8211, 8212, 8213, 8214, 8215, 8216, 8217, and 8218 as “the Post-Receipt Reports.”

¹¹ See the Unitype Allegation at Attachment I-2.

¹² See the *Order*.

¹³ See the Allegations at 4 and 7.

¹⁴ *Id.* at 6-7.

¹⁵ *Id.* at 14-16 and Attachment F.

¹⁶ *Id.* at 19 and Attachments I-1 through I-3.

¹⁷ *Id.* at 14.

commerce platforms,¹⁸ showing that, based on the prices advertised, the sale values were likely too low to cover AD duties and costs of production.¹⁹ The Allegation also provided an affidavit from [CONFIDENTIAL SOURCE] in which the affiant stated that the prices at which the Importers are likely importing covered merchandise could not feasibly reflect AD duty deposits of 386.28 percent on U.S. imports of such merchandise.²⁰ The affiant also explained that, based on the affiant's knowledge of the TBLG production process, it would not even be possible to manufacture TBLGs for the prices listed on the e-commerce platforms for the Importers' TBLGs and still pay the duties for these unit prices.²¹

Agri-Fab also claimed in the Allegations that its estimated break-even import prices are very conservative, since they do not account for any profit by the U.S. importer or reseller, or any freight, insurance, fees, storage, or related charges incurred after importation.²² Likewise, Agri-Fab contended that the estimated production costs are extremely conservative because they represent [

DESCRIPTION OF INFORMATION

].²³

Agri-Fab argued that, despite these highly conservative figures, the “break even” import prices of the Chinese lawn groomers it has found for sale online are [NUMBERS] percent lower than Agri-Fab's [DESCRIPTION OF DATA PROVIDED IN ALLEGATION].²⁴ Based on this analysis, Agri-Fab asserted the only likely scenario is that the Importers are failing to pay AD duties.²⁵

The Allegations also explained that all three of the Consignees have received shipments from the same Chinese supplier, an e-commerce platform called Shanghai Aote E-Commerce, Co., Ltd. (Shanghai Aote).²⁶ Agri-Fab argued that because it has filed a separate allegation against other entities receiving shipments of TBLGs from Shanghai Aote, the fact that the Consignees have received shipments from this supplier also contributes to a suspicion of evasion.²⁷ Additionally, the Alleger pointed out that Shanghai Aote sells many of the same products as other online e-commerce platforms, including platforms from which the Alleger purchased a sample [PRODUCT].²⁸ This suggests, according to the Allegations, that the Importers are likely importing tow-behind lawn sweepers, which are a type of lawn sweeper covered by the *Order*, at prices that likely do not include payment of applicable AD duties.²⁹

Information from CBP Systems

¹⁸ *Id.* at 16 (Table 2).

¹⁹ *Id.* at 16 and Attachment F.

²⁰ *Id.* at 16.

²¹ *Id.* at Exhibit F.

²² *Id.* at 16-18 and Attachment F.

²³ *Id.* at 5 and Attachment I-2.

²⁴ *Id.* at 18 and Attachment F.

²⁵ *Id.* at 18.

²⁶ *Id.* at 19 and Attachments I-1 through I-3.

²⁷ *Id.* at 19.

²⁸ *Id.* at 18-19.

²⁹ *Id.* at Attachments F and G.

CBP reviewed invoices, packing lists (PL), and CF-7501 entry summaries (7501) in entry packages that Chasoe submitted in the document image system (DIS) of CBP's automated commercial environment (ACE) with entry [#]6090 (6090). CBP also reviewed DIS entry packages Toyarr submitted with entries [#]9700 (9700) and [#]9817 (9817). Entries 6090, 9700, and 9817 were all entries that were entered during the POI.³⁰ The invoices and PLs in these DIS entry packages show that Chasoe and Toyarr imported merchandise including "lawn sweepers" from China.³¹ Chasoe and Toyarr classified these lawn sweepers under harmonized tariff schedule (HTS) number 8479.89.9599,³² an incorrect HTS classification for lawn sweepers. Lawn sweepers are also covered by the dispositive written description of the *Order's* scope, if towed and made in China.³³ Chasoe and Toyarr reported the country of origin for these lawn sweepers as China, but entered them as type 01, not subject to AD duties.³⁴ This indicates that Chasoe and Toyarr likely misclassified their merchandise, failed to file an entry as type 03, and failed to pay applicable AD duties upon entry.

CBP data also showed that Stove Top was a consignee for each of the Stove Top Importers, Worldreach was a consignee for each of the Worldreach Importers, while Unitype acted as the IOR for its own entries.³⁵ CBP also found that each of the 11 IORs entered merchandise during the POI that they declared as HTS number 8479.89.9599,³⁶ the same HTS that Toyarr and Chasoe used to classify their lawn sweepers according to the DIS entry packages CBP reviewed.³⁷ Furthermore, each of the IORs declared the entries with this HTS number as Chinese origin, yet the IORs also declared each of these entries as type 01, not covered by the *Order*, and therefore, did not pay applicable duties.³⁸

Initiation of the Investigation

On August 19, 2025, in accordance with 19 C.F.R. § 165.12(a), CBP acknowledged receipt of Agri-Fab's properly filed EAPA allegations concerning evasion by the Importers,³⁹ and on September 10, 2025, CBP initiated EAPA Cons. investigation 8201.⁴⁰ Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are those "entries of allegedly covered merchandise made within one year before the receipt of an allegation...." Entry is defined as an "entry for consumption, or withdrawal from warehouse for consumption, of merchandise in the customs territory of the United States...."⁴¹ Therefore, the entries covered by this investigation would be those entered for consumption, or withdrawn from warehouse for consumption, during

³⁰ See DIS entry packages for entries 6090, 9700, and 9817.

³¹ *Id.*

³² *Id.*

³³ See the *Order*.

³⁴ See the DIS Memo.

³⁵ See the Post-Receipt Reports. This satisfies the requirements in 19 C.F.R. § 165.11(b)(3).

³⁶ *Id.*

³⁷ See DIS entry packages for entries 6090, 9700, and 9817.

³⁸ See the Post-Receipt Reports.

³⁹ See CBP's email, "EAPA 8201, 8202, 8203, 8211, 8212, 8213, 8214, 8215, 8216, 8217, and 8218 - Receipt of Allegations," dated August 19, 2025 (Receipt Email). See also EAPA Receipt Checklist for Case Numbers 8201, 8202, 8203, 8211, 8212, 8213, 8214, 8215, 8216, 8217, and 8218.

⁴⁰ See Initiation Memo, dated September 10, 2025.

⁴¹ See 19 C.F.R. § 165.1. See also 19 U.S.C. § 1517(a)(4).

the period of investigation (POI) from August 19, 2024, through the pendency of this investigation.⁴²

Pursuant to 19 C.F.R. § 165.13(b), CBP may consolidate multiple allegations based on factors including the relationship between the importers, similarity of covered merchandise, similarity of AD/CVD orders, and overlap in timing of entries of covered merchandise.⁴³ In this investigation, CBP found that all four factors were present, so CBP consolidated EAPA investigation numbers 8201, 8202, 8203, 8211, 8212, 8213, 8214, 8215, 8216, 8217, and 8218 into a single consolidated investigation, EAPA Consolidated Case 8201 at the time of initiation.⁴⁴

II. Research Conducted by CBP Prior to the Notice of Initiation of Investigation

CBP Form 28s

On September 18, 2025, CBP sent CBP Form 28 (CF-28) requests for information to the Importers requesting information for: entries [#]6762 and [#]2420 from Chasoe;⁴⁵ entries [#]9803 and [#]5949 from Eminent World;⁴⁶ Faster Bat entries [#]7116, [#]5802, [#]5090, and [#]6085;⁴⁷ Fine Tune entries [#]3389, [#]9481, and [#]5733;⁴⁸ Inchoi entries [#]6769, [#]3892, [#]6812, and [#]2487;⁴⁹ entries [#]6477, [#]4032, and [#]0989 from Magic King;⁵⁰ entries [#]6515, [#]5464, [#]7737 imported by Newway;⁵¹ Onerich entries [#]7912, [#]9064 and [#]9098;⁵² Toyarr entries [#]2407, [#]2811, and [#]3087;⁵³ Unitype entries [#]8740, [#]2221, [#]2650, and [#]0955;⁵⁴ and Zenith entries [#]1256, [#]4136, and [#]1462.⁵⁵ CBP requested, *inter alia*, a description of the merchandise in each entry and the production processes, the name and addresses of the manufacturers, and labeled photographs of the factories where the goods in these entries were produced including photographs of production equipment. CBP also requested employee timecards for production workers involved in production of these entries and raw material purchase documents (*e.g.*, raw material purchase orders (PO), raw material invoices, or raw materials BOLs).⁵⁶ None of the Importers provided responses to the

⁴² See 19 C.F.R. § 165.2.

⁴³ See 19 C.F.R. § 165.13(b).

⁴⁴ See the Initiation Memo at 6.

⁴⁵ See the CF-28 CBP issued to Chasoe, dated September 18, 2025 (Chasoe CF-28).

⁴⁶ See the CF-28 CBP issued to Eminent World, dated September 18, 2025 (Eminent World CF-28).

⁴⁷ See the CF-28 CBP issued to Faster Bat, dated September 18, 2025 (Faster Bat CF-28).

⁴⁸ See the CF-28 CBP issued to Fine Tune, dated September 18, 2025 (Fine Tune CF-28).

⁴⁹ See the CF-28 CBP issued to Inchoi, dated September 18, 2025 (Inchoi CF-28).

⁵⁰ See the CF-28 CBP issued to Magic King, dated September 18, 2025 (Magic King CF-28).

⁵¹ See the CF-28 CBP issued to Newway, dated September 18, 2025 (Newway CF-28).

⁵² See the CF-28 CBP issued to Onerich, dated September 18, 2025 (Onerich CF-28).

⁵³ See the CF-28 CBP issued to Toyarr, dated September 18, 2025 (Toyarr CF-28).

⁵⁴ See the CF-28 CBP issued to Unitype, dated September 18, 2025 (Unitype CF-28).

⁵⁵ See the CF-28 CBP issued to Zenith, dated September 18, 2025. We refer collectively to the CF-28s issued to the Importers as “the CF-28s.”

⁵⁶ See the CF-28s.

CF-28s by the deadline of October 18, 2025 (30 days after the date CBP issued the CF-28s, as required on the form instructions).⁵⁷

On November 3, 2025, more than two weeks after the CF-28 response deadline, Faster Bat submitted documents related to entry [#]6085 (6085).⁵⁸ Faster Bat's CF-28 Response included a table that listed every item in this entry with a one or two-word description of the merchandise, the quantity and value of each item, the names of the manufacturers, and the HTS numbers used to classify the merchandise. The list of items imported in this entry included 105 compost spreaders and 54 lawn sweepers,⁵⁹ products that are covered by the *Order* if towed and made in China.⁶⁰ However, the description did not state whether the merchandise required towing.⁶¹ Faster Bat classified the lawn sweepers under HTS number 8479.89.9599, the same HTS numbers Chasoe and Toyarr incorrectly used to classify their TBLGs in the DIS entry packages.⁶² Faster Bat declared all items in entry 6085, including the lawn sweepers and compost spreaders, as Chinese origin but also filed entry as type 01, not subject to AD duties.⁶³

Faster Bat also provided 18 photographs of the interior of factories, six invoices for manufacturers' purchases of raw materials, 10 sales contracts between manufacturers and raw material suppliers, and photographs of six products included in the entry.⁶⁴ However, this entry contained 50 separate products, and Faster Bat failed to provide factory photographs or raw manufacturers' raw material purchase documents for the vast majority of items in the entry. Faster Bat did not submit any raw material purchase documents for the lawn sweepers and compost spreaders.⁶⁵

The photographs Faster Bat provided were also unlabeled, even though CBP requested labeled photographs, and Faster Bat did not furnish any photographs of the exteriors of these factories, as requested in the CF-28.⁶⁶ The interior factory photographs Faster Bat provided did not show the names of companies photographed. As a result, these photographs did not indicate where the photographs were taken. Due to Faster Bat's failure to provide labels on the photographs, it is also unclear what manufacturing processes were taking place, or which items in the entry (if any) were being produced in these factory photographs. Faster Bat's CF-28 Response also failed to provide most of the other information CBP requested including:

- Copies of contract (or purchase order and seller's confirmation thereof) covering the transactions;
- The addresses of the manufacturers;
- Employee timecards for workers involved in production;

⁵⁷ *Id.*

⁵⁸ See Faster Bat's CF-28 Response for entry 6085 (Faster Bat's CF-28 Response). See also the Faster Bat CF-28. The instructions on the CF-28 stated that a response was due within 30 days, (*i.e.*, October 18, 2025).

⁵⁹ See Faster Bat's CF-28 Response.

⁶⁰ See the *Order*.

⁶¹ See Faster Bat's CF-28 Response at 1-2.

⁶² *Id.* at 1-2, compared with the classifications of merchandise in the DIS entry packages.

⁶³ See the Post-Receipt Reports.

⁶⁴ See Faster Bat's CF-28 Response.

⁶⁵ *Id.*

⁶⁶ *Id.*, compared with the CF-28s, which requested labeled interior and exterior factory photographs.

- Production flow charts or explanations of the production processes for making the merchandise in this entry;
- An explanation of the relationship between Faster Bat and the sellers of the merchandise in the entry; or
- Material consumption records, or any other documents recording actual production of the merchandise in entry number 6085.⁶⁷

Additionally, Faster Bat never provided any information about entries 7116, 5802, or 5090 which CBP requested information about in the same CF-28 that asked about entry 6085.⁶⁸

Zenith also provided a response for entries 1256 and 1462 but provided its response on November 4, 2024, more than two weeks after the response deadline.⁶⁹ Zenith's response for entry 1256 included a list of every type of merchandise in the entry, the names of the manufacturers, the quantities and values, the country of origin (China), and a one or two-word description of each item. This list included 123 lawn sweepers and 116 surface aerators,⁷⁰ which according to the *Order* are two types of TBLGs, if towed.⁷¹ The surface aerators and lawn sweepers were both classified under HTS number 8479.89.9599, the same HTS number that Chasoe, Toyarr, and Faster Bat used to misclassify their imports of TBLGs.⁷² Although Zenith declared these items as Chinese origin, Zenith declared them as type 01, not subject to AD duties.⁷³ However, Zenith's response did not clarify whether this merchandise was towed because the list of items only stated that the lawn sweepers were made of "iron +plastic" {sic.}, and used for "cleaner", while stating that the surface aerators were made of "iron +plastic" {sic.} and used for "oxygenation."⁷⁴

Several of the documents provided in Zenith's CF-28 Response for entry 1256 were completely unrelated to the merchandise listed in this entry. For example, Zenith provided a sales delivery invoice from a purported supplier named Changge City Fumaoxiang Stainless Steel Plate to a customer named The New Australian Bee Industry for a delivery of roll tape.⁷⁵ However, Zenith did not list either of these companies as a supplier of merchandise imported in entry 1256, and tape is not listed as an item in this entry.⁷⁶ Zenith provided a copy of a production plan and production record from another company that is not listed as a supplier of the merchandise in this entry, Sunsource Shengyuan Solutions of Oilfree Air.⁷⁷ Zenith also provided a production plan

⁶⁷ See Faster Bat's CF-28 Response.

⁶⁸ See the Faster Bat CF-28.

⁶⁹ See Zenith's CF-28 Response for entries 1256 and 1462. See also the Zenith CF-28. The instructions on the CF-28 stated that a response was due within 30 days, (*i.e.*, October 18, 2025).

⁷⁰ See Zenith's CF-28 Response for entry 1256.

⁷¹ See the *Order*.

⁷² See Zenith's CF-28 Response for entry number 1256. See also Faster Bat's CF-28 Response and the entry documents Chasoe and Toyarr submitted with entries 6090, 9700, and 9817.

⁷³ *Id.* See also the Post-Receipt Report for EAPA 8213.

⁷⁴ See Zenith's CF-28 Response for entry 1256 at 1-2.

⁷⁵ *Id.* at 5.

⁷⁶ *Id.*, comparing the product description and the company names on the document on page 5 with the list of items and suppliers on pages 1-2.

⁷⁷ *Id.*, compared with the name of the company on the production plan (54/55 in the pdf) with the list of companies that supplied Zenith with items in this entry on pages 1-2/55 of the pdf. It is not even clear what product this production record refers to because it does not list any product names.

from a company called Shanghai Sishun,⁷⁸ but Zenith did not list this company as the manufacturer of any items in entry 1256.⁷⁹

Zenith's failure to label the photographs provided in its response, as CBP requested, or provide any written narrative with its response rendered most of the photographs impossible to interpret. For example, Zenith furnished six photographs of goods, but it is not clear if these are photographs of finished goods entered into the U.S. with this entry, or of input materials because the photographs are unlabeled.⁸⁰ Zenith also provided 10 unlabeled photographs of the interiors of factories, but the photographs do not show the names of the companies producing the goods.⁸¹ Without labels or exterior factory photographs (which would normally show a sign with a company name on it), CBP could not determine what merchandise was produced in the factories, the names of the manufacturers, the addresses of these factories, or the production processes/steps shown in the photographs. It was also unclear when these photographs were taken.⁸²

Zenith's CF-28 Response for entry 1256 was also incomplete. For example, the photographs provided only showed a small subset of inputs or factories in this entry because there were only 10 factory photographs, but 37 combinations of different merchandise and suppliers, and six photographs of goods, which could not constitute the inputs for all 37 of the separate items imported in this entry.⁸³ Zenith's response also included a production process flow chart for the manufacture of one item in the entry, an impact socket kit,⁸⁴ but provided no production process flow charts for the other 36 items in the entry, including the lawn sweepers and surface aerators.⁸⁵ Zenith also failed to provide any of the following documents CBP requested for entry 1256:

- Copies of contract (or purchase order and seller's confirmation thereof) covering the transactions;
- The addresses of the manufacturers;
- Employee timecards for workers involved in production; and
- An explanation of the relationship between Zenith and the sellers of the merchandise in the entry.⁸⁶

For entry 1462, Zenith provided a list of items in the entry, the HTS numbers, manufacturers, and the quantity and value of these items.⁸⁷ According to this list, Zenith imported 13 surface aerators classified under HTS number 8479.89.9599, the same HTS number used by Toyarr, Faster Bat, and Chasoe to misclassify their TBLGs.⁸⁸ The list did not state whether the surface

⁷⁸ *Id.* at 15-16.

⁷⁹ *Id.* at 1-2.

⁸⁰ *Id.*

⁸¹ *Id.*

⁸² *Id.*

⁸³ *Id.* at 1-2, compared with the photographs provided on pages 3-4, 6, 11-14, 19, 21, 24-25, 29-30, 37-39, 42-45, and 50.

⁸⁴ *Id.* at 23.

⁸⁵ *Id.*

⁸⁶ See Zenith's CF-28 Response for entry 1256, compared with the Zenith CF-28.

⁸⁷ See Zenith's CF-28 Response for entry 1462 at 1/53 in the pdf.

⁸⁸ *Id.*

aerators were towed or not.⁸⁹ The quantities, unit values, and HTS number for these surface aerators exactly match those on entry lines Zenith filed for entry 1462.⁹⁰ Zenith's CF-28 Response provided invoices for purchases of raw materials by some manufacturers of the products in the entry but did not provide these documents for most products listed, including the surface aerators. Zenith also provided unlabeled photographs of factory interiors that were uninterpretable because there were no signs in any of the photographs identifying the factory name or manufacturer, nor were there any labels or captions explaining what production processes they showed and of what goods. There was nothing in these photographs to indicate the dates when they were taken, or the addresses where they were taken. Furthermore, Zenith's CF-28 Response did not include any production process flow charts, so it is not clear what items imported in this entry (if any) were produced in the factories shown in the photographs.⁹¹

Zenith never provided any of the information CBP requested for entry 4136.⁹²

On November 13, 2025, 26 days after the response deadline, Magic King's customs broker submitted documents it described as a CF-28 response for entry number [#]6477 (6477) by email.⁹³ This email contained attachments with untranslated Chinese-language documents and some photographs of factory equipment.⁹⁴ Because the documents were untranslated, and had no written narrative or English-language list of products, CBP could not determine what entry the documents related to.⁹⁵ The photographs were also unlabeled, and therefore, CBP could not determine what products in Magic King's entries (if any) were made using this equipment, or the location of this equipment, or when the photographs were taken to determine whether the equipment could have been used to manufacture the entries in question.⁹⁶ Because CBP could not interpret the documents Magic King provided ostensibly in response to the CF-28 for entry 6477, CBP did not consider this information.⁹⁷ Magic King never provided any response to the CF-28 regarding entries 4032 and 0989.⁹⁸ However, the response for entry 6477 also included a list of products in the entry, including 476 total lawn sweepers, which according to the list were classified under HTS number 8479.89.9599.⁹⁹ The quantities, HTS numbers, and unit values of these lawn sweepers exactly match entry lines Magic King filed for this entry under HTS number 8479.89.9599.¹⁰⁰ However, HTS number 8479.89.9599 is not a correct HTS number for lawn sweepers, which indicates that Magic King likely misclassified covered

⁸⁹ See Zenith's CF-28 Response for entry 1462 at 1/53 in the pdf. See also Faster Bat's CF-28 Response and the entry documents Toyarr and Chasoe submitted with entries 6090, 9700, and 9817.

⁹⁰ See the Post-Receipt Reports, compared with the list in Zenith's CF-28 Response for entry 1462.

⁹¹ *Id.*

⁹² See the Zenith CF-28.

⁹³ See Magic King's CF-28 Response for entry 6477, dated November 13, 2025 (Magic King's CF-28 Response).

⁹⁴ *Id.*

⁹⁵ *Id.*

⁹⁶ *Id.*

⁹⁷ *Id.* See also the Allegations.

⁹⁸ See the Magic King CF-28.

⁹⁹ See Magic King's CF-28 Response.

¹⁰⁰ See the Post-Receipt Reports, compared with Magic King's CF-28 Response.

merchandise upon entry. Notably, this is also the same incorrect HTS number Zenith, Faster Bat, Toyarr, and Chasoe used to misclassify their imports of covered merchandise.¹⁰¹

On November 17, 2025, four weeks after the CF-28 response deadline, Onerich submitted documents related to entry [#]7912 (7912).¹⁰² Onerich did not provide documents related to entries [#]9064; [#]9098 as requested. In its response for entry 7912, Onerich provided a spreadsheet with a list of products (including 36 lawn sweepers,¹⁰³ which are a type of merchandise covered by the *Order* if towed.¹⁰⁴ According to Onerich's entry summary, it declared this item as Chinese-origin and type 01,¹⁰⁵ even though lawn sweepers are covered by the *Order* if made in China.¹⁰⁶ The list Onerich provided also included the name of the manufacturer, the unit price, net weight, and HTS number of each item included in entry 7912. According to this list, Onerich classified the lawn sweepers under HTS 8478.89.9599,¹⁰⁷ the same HTS number that Faster Bat,¹⁰⁸ Zenith,¹⁰⁹ Toyarr, and Chasoe used to misclassify their covered merchandise.¹¹⁰ This indicates that Onerich also misclassified covered merchandise using an incorrect HTS number for merchandise that fits the dispositive written description of covered merchandise.¹¹¹

Onerich also provided untranslated spreadsheets and other documents that appear to be in Chinese, but CBP could not read these documents and spreadsheets because they had no English translations.¹¹² The submission also included photographs of materials and factories equipment. However, these photographs are unlabeled and nothing in the photographs indicates at which manufacturers (if any) from the list Onerich provided they were taken.¹¹³ Further, Onerich's submission was incomplete as it did not include several documents requested by CBP, including a description of the production processes, names and addresses of manufacturers, bills of lading, employee time cards, productions schedules, or material production records.¹¹⁴ While the submission was significantly lacking, it does confirm that Onerich imported lawn sweepers,¹¹⁵ likely covered merchandise, and misclassified them using the same HTS number the other

¹⁰¹ See Magic King's CF-28 Response, compared with Zenith's CF-28 Response for entry 1462 at 1/53 in the pdf. See also Faster Bat's CF-28 Response and the entry documents Toyarr and Chasoe submitted with entries 6090, 9700, and 9817.

¹⁰² See Onerich's CF-28 Response for entry 7912 (Onerich's CF-28 Response). See also the Onerich CF-28. The instructions on the CF-28 stated that a response was due within 30 days, (i.e., October 18, 2025).

¹⁰³ *Id.*

¹⁰⁴ See the *Order*.

¹⁰⁵ See the Post-Receipt Report for EAPA 8217.

¹⁰⁶ See the *Order*.

¹⁰⁷ See Onerich's CF-28 Response.

¹⁰⁸ See Faster Bat's CF-28 Response.

¹⁰⁹ See Zenith's CF-28 Response for entries 1256 and 1462.

¹¹⁰ See DIS entry packages for entries 6090, 9700, and 9817. See also the *Order*.

¹¹¹ *Id.*

¹¹² See Onerich's CF-28 Response.

¹¹³ *Id.*

¹¹⁴ *Id.*

¹¹⁵ *Id.*

Importers used to import likely covered merchandise.¹¹⁶ Onerich never submitted any response to the CF-28 with information about entries 6094 and 9098.¹¹⁷

On November 13, 2025, almost 4 weeks after the due date,¹¹⁸ Eminent World submitted a CF-28 response for entry number [#]9803 (9803).¹¹⁹ This response consisted of an excel spreadsheet with a list of products in the entry, the HTS numbers used to classify them, descriptions of the production process for making each item, the quantity, value, and unit value of each item, the name and addresses of the manufacturers for each item, and photographs of the exteriors of two factories.¹²⁰ This list revealed that Eminent World imported 192 lawn sweepers classified under HTS number 8479.89.9599 for a unit price of \$4.61 each.¹²¹ HTS number [#] is the same number Faster Bat, Toyarr, Unitype, and Magic King used to misclassify their TBLGs.¹²² Although there were 34 separate items in this entry, Eminent World provided only [#] factory photographs in the excel sheet, and failed to provide photographs of factory exteriors for 32 items, including the lawn sweepers.¹²³ The factory photographs were also unlabeled, even though CBP requested labeled photographs.¹²⁴ Eminent World also failed to provide any of the information CBP requested about entry number [#]5949.¹²⁵

Eminent World also provided 132 photographs of factory interiors, showing equipment and production workers. However, these photographs were unlabeled, so it was impossible to determine what goods were being produced in the photographs.¹²⁶ Eminent World also provided untranslated Chinese language documents, but CBP could not determine what production or purchase records these were because they were all in Chinese.¹²⁷ Because CBP could not interpret the documents Eminent World provided ostensibly in response to the CF-28 for entry 9803,¹²⁸ this response does not detract from the evidence in the Allegations that Eminent World evaded the *Order*.¹²⁹ Furthermore, Eminent World's CF-28 Response confirmed that it imported lawn sweepers classified under the same HTS code the other Importers used to classify their TBLGs,¹³⁰ while CBP data shows that Eminent World declared these lawn sweepers as type 01

¹¹⁶ See DIS entry packages for entry 9700 and entry 9817. See also Faster Bat's CF-28 Response and Zenith's CF-28 Response for entries 1256 and 1462.

¹¹⁷ See the Onerich CF-28.

¹¹⁸ See the Eminent World CF-28. The instructions on the CF-28 stated that a response was due within 30 days, (*i.e.*, October 18, 2025).

¹¹⁹ See Eminent World's CF-28 Response for entry 9803 (Eminent World's CF-28 Response).

¹²⁰ *Id.*

¹²¹ *Id.*

¹²² See Faster Bat's CF-28 Response, Zenith's CF-28 Response for entries 1256 and 1462, Magic King's CF-28 Response, Onerich's CF-28 Response, and DIS entry packages for entries 6090, 9700, and 9817.

¹²³ See Eminent World's CF-28 Response.

¹²⁴ *Id.*, compared with the Eminent World CF-28.

¹²⁵ See Eminent World's CF-28 Response, compared with the Eminent World CF-28.

¹²⁶ See Eminent World's CF-28 Response.

¹²⁷ *Id.*

¹²⁸ *Id.*

¹²⁹ See the *Order*.

¹³⁰ See Eminent World's CF-28 Response, compared with Faster Bat's CF-28 Response, Zenith's CF-28 Response for entries 1256 and 1462, Magic King's CF-28 Response, Onerich's CF-28 Response, and DIS entry packages for entries 6090, 9700, and 9817.

even though it also declared them as Chinese origin,¹³¹ and thus, covered by the *Order*.¹³² Therefore, the information in Eminent World's CF-28 Response supports the information in the Allegations indicating that Eminent World likely entered TBLGs into the customs territory of the United States through evasion.¹³³

On November 23, 2025, more than five weeks after the due date,¹³⁴ Fine Tune provided a CF-28 response with entry number [#]3389 (3389) in the file name.¹³⁵ Fine Tune's submission included a list of items in the entry, which included 44 compost spreaders classified under HTS number 8432.80.0080.¹³⁶ Because the description in Fine Tune's response did not indicate whether or not the compost spreaders were towed,¹³⁷ it is not clear whether they are covered by the *Order*. However, compost spreaders are a type of merchandise covered by the *Order*, if towed.¹³⁸ Fine Tune's response also included unlabeled factory photographs and untranslated Chinese-language documents.¹³⁹ Because there was nothing in the photographs to indicate where or when they were taken, or what production processes they show, it is not clear whether or not the photographs show production of the merchandise Fine Tune listed.¹⁴⁰ As a result, CBP found nothing in Fine Tune's CF-28 Response that detracts from the Allegations.¹⁴¹

Fine Tune did not provide many of documents CBP requested including:

- Copies of contract (or purchase order and seller's confirmation thereof) covering the transactions;
- The addresses of the manufacturers; or
- An explanation of the relationship between Fine Tune and the sellers of the merchandise in the entry¹⁴²

Fine Tune never provided any of the requested information for entry numbers [#]9481, and [#]5733.¹⁴³

The other importers (*i.e.*, Chasoe, Inchoi, Newway, Toyarr, and Unitype) never provided any responses to the CF-28s, and therefore, CBP obtained no information from those Importers about their imports of covered merchandise that contradicts the information in the Allegations.¹⁴⁴

III. Interim Measures

¹³¹ See the Post-Receipt Report for EAPA 8214.

¹³² See the *Order*.

¹³³ See Eminent World's CF-28 Response and the Allegations.

¹³⁴ See the Fine Tune CF-28.

¹³⁵ See Fine Tune's CF-28 Response.

¹³⁶ *Id.*

¹³⁷ *Id.*

¹³⁸ See the *Order*.

¹³⁹ See Fine Tune's CF-28 Response.

¹⁴⁰ *Id.*

¹⁴¹ *Id.* See also the Allegations.

¹⁴² See Fine Tune's CF-28 Response, compared with the Fine Tune CF-28.

¹⁴³ See the Fine Tune CF-28.

¹⁴⁴ See the CF-28s.

Based on the record evidence available at that time, CBP issued its Notice of Initiation of Investigation and Interim Measures.¹⁴⁵ CBP determined that, based on the evidence described above, there was reasonable suspicion that the Importers evaded the *Order* by importing Chinese TBLGs without declaring them as type 03, subject to AD duties, and failed to pay applicable AD duties.¹⁴⁶

IV. Requests for Information

On December 15, 2025, CBP sent Chasoe, Faster Bat, Fine Tune, Eminent World, Inchoi, Magic King, Newway, Toyarr, and Zenith requests for information (RFI) with response deadlines of December 29, 2025.¹⁴⁷ On December 16, 2025, CBP sent Unitype an RFI by FedEx¹⁴⁸ with a response deadline of December 30, 2025,¹⁴⁹ because CBP's email to Unitype notifying it of the investigation and informing it of the NOI had bounced back.¹⁵⁰ The Importer RFIs asked the Importers, *inter alia*, for additional information about the characteristics of the merchandise they imported, their suppliers, their customers, and the price they paid for the covered merchandise.¹⁵¹ None of the Importers submitted a response to the Importer RFIs, so CBP re-sent the Importer RFIs by FedEx to Chasoe, Faster Bat, Fine Tune, Eminent World, Inchoi, Magic King, Newway, Toyarr, and Zenith on January 9, 2026, to afford them a second opportunity to respond.¹⁵² CBP also re-sent the Unitype RFI to Unitype on January 12, 2026, to provide it with a second opportunity to respond.¹⁵³ None of the Importers submitted a response to the Importer RFIs after the second opportunity.

On December 16, 2026, CBP sent an RFI to Shanghai Aote by email with a December 30, 2026, response deadline.¹⁵⁴ CBP asked, *inter alia*, for a list of the supplier's manufacturing facilities, their production capacity, a description of the production process, a monthly inventory of

¹⁴⁵ See CBP's letter, "RE: EAPA Cons. CASE 8201 – Notice of Initiation of Investigation and Interim Measures," dated December 15, 2025 (the NOI).

¹⁴⁶ *Id.*

¹⁴⁷ See CBP's letter to Chasoe, "RE: EAPA Cons. Case No. 8201 Request for Information," dated December 15, 2025 (Chasoe RFI); CBP's letter to Faster Bat, "RE: EAPA Cons. Case No. 8201 Request for Information," dated December 15, 2025 (Faster Bat RFI); CBP's letter to Fine Tune, "RE: EAPA Cons. Case No. 8201 Request for Information," dated December 15, 2025 (Fine Tune RFI); CBP's letter to Eminent World, "RE: EAPA Cons. Case No. 8201 Request for Information," dated December 15, 2025 (Eminent World RFI); CBP's letter to Inchoi, "RE: EAPA Cons. Case No. 8201 – Request for Information," dated December 15, 2025 (Inchoi RFI); CBP's letter to Magic King, "RE: EAPA Cons. Case No. 8201 – Request for Information," dated December 15, 2025 (Magic King RFI); CBP's letter to Newway, "RE: EAPA Cons. Case No. 8201 Request for Information," dated December 15, 2025 (Newway RFI); CBP's letter to Toyarr, "RE: EAPA Cons. Case No. 8201 Request for Information," dated December 15, 2025 (Toyarr RFI); and CBP's letter to Zenith, "RE: EAPA Cons. Case No. 8201 Request for Information," dated December 15, 2025 (Zenith RFI). We refer collectively to these letters and the Unitype RFI as "the RFIs."

¹⁴⁸ See CBP memorandum, "Adding FedEx Receipts and Tracking to the Administrative Record (Cons. 8201)," dated February 29, 2026 (the FedEx Memo), at Attachment 1.

¹⁴⁹ See CBP's letter to Unitype, "RE: EAPA Cons. Case No. 8201 – Request for Information," dated December 16, 2025 (Unitype RFI).

¹⁵⁰ See email from CBP Mail Delivery System, "Undeliverable: EAPA Consolidated Investigation 8201 – Notice of Initiation of Investigation and Interim measures – PD," dated December 9, 2025.

¹⁵¹ See the RFIs.

¹⁵² See the FedEx Memo at Attachment 4.

¹⁵³ *Id.* at Attachment 2.

¹⁵⁴ See CBP's letter, "RE: EAPA Cons. 8201 - Request for Information," dated December 16, 2025 (Supplier RFI).

covered merchandise, and the names of raw material suppliers.¹⁵⁵ However, Shanghai Aote did not submit a response to the Supplier RFI by the December 30, 2026, deadline. On January 14, 2026, CBP sent the RFI to Shanghai Aote by FedEx, with a new deadline of February 3, 2026, to respond. On January 19, 2026, FedEx stated that the package was undeliverable because the recipient was “not available or business closed” and returned the package to CBP.¹⁵⁶

V. Voluntary Factual Information

On March 28, 2026, the Alleger submitted voluntary factual information.¹⁵⁷ Agri-Fab asserted that CBP should apply adverse inferences to each of the Importers, arguing that “CBP should find that the information the Importers have contributed to the administrative record in this proceeding is incomplete, disorganized to the point of being incomprehensible, and wholly non-responsive to the question of what covered merchandise the Importers have imported into the United States.”¹⁵⁸ Agri-Fab further pointed out that “{...} none of the Importers responded to your office’s RFIs, and no responses have been added to the administrative record.”¹⁵⁹

The Alleger also asserted that the reported prices in the Importers’ DIS documents and CF-28 Responses were unrealistic prices and supported this assertion by providing U.S. import data from the Census Bureau showing that “statistical data for imports of TBLGs from Vietnam show an average unit import price of \$58.32 for tow-behind aerators and spreaders, and \$116.41 for tow-behind sweepers.”¹⁶⁰ The Alleger then concluded that “the prices for the {covered} merchandise shown in the DIS documents provided for all Importers, on their face, do not remotely resemble *bona fide* sales of the covered merchandise for exportation to the United States.”¹⁶¹ The Alleger also argued that CBP should not rely on the value declared by the importers, and rely on its authority under 19 USC 1500 and 19 USC 1401a to correctly appraise the merchandise.

Agri-Fab also provided pricing information it submitted on the administrative record of EAPA consolidated investigation 8150, which showed prices from the website of Vevor, an e-commerce company selling TBLGs from China in the U.S. market. This information showed that “tow lawn sweepers” were available for sale for a price of \$309.99 and “tow plug aerators” were sold for \$235.99 in December 2025.¹⁶² Agri-Fab argued that CBP should use this information, and cited to 19 C.F.R. § 165.6(b), which states that when applying adverse inferences to make a determination as to evasion, CBP may use “information derived from an allegation, a prior determination in another CBP investigation, proceeding, or action that involves evasion of AD/CVD orders, or any other available information on the administrative record.”¹⁶³

¹⁵⁵ See Supplier RFI.

¹⁵⁶ See the FedEx Memo at Attachment 3.

¹⁵⁷ See Agri-Fab’s letter, “Re: EAPA Consolidated Case No. 8201; Agri-Fab’s Comments on Valuation,” dated March 28, 2026 (VFI).

¹⁵⁸ *Id.* at 2.

¹⁵⁹ *Id.* at 8.

¹⁶⁰ *Id.* at 10 and Exhibit A.

¹⁶¹ *Id.* at 12.

¹⁶² *Id.* at 17 and Exhibit B.

¹⁶³ *Id.* at 16. See also 19 C.F.R. § 165.6(b).

None of the Importers submitted voluntary factual information or any rebuttal to Agri-Fab's VFI.

VI. Written Arguments

Other than the arguments Agri-Fab made in its VFI, none of the parties to the investigation submitted written arguments in this investigation. However, on April 28, 2026, Agri-Fab filed a letter asking that CBP incorporate its March 28, 2026, comments on valuation in full and apply the information therein to all IORs covered by this EAPA investigation.¹⁶⁴ Agri-Fab asserted that none of the IORs involved in this case responded to CBP's RFIs or otherwise cooperated with this investigation, and therefore, CBP should apply adverse inferences pursuant to 19 C.F.R. § 165.6 in making its determination as to evasion.¹⁶⁵ The Alleger also pointed out that in EAPA investigation 8150, CBP used the value information Agri-Fab submitted to re-value the undervalued entries of TBLGs in that investigation, as Agri-Fab proposed in its March 28, 2026, VFI.¹⁶⁶

VII. Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must "make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion." Evasion is defined as "entering covered merchandise into the customs territory of the United States by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security of any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise."¹⁶⁷ As discussed in this determination, the record of this investigation contains evidence that the Importers entered merchandise covered by the *Order* into the United States through evasion, resulting in the avoidance of applicable AD cash deposits or other security by failing to declare the merchandise as covered by the *Order*, misclassifying the merchandise, and undervaluing the merchandise. Based on that evidence and the application of adverse inferences due to the Importers' failure (and the failure of the suppliers) to cooperate in the investigation, CBP concludes there is substantial evidence of evasion.

Adverse Inferences

Pursuant to 19 U.S.C. § 1517(c)(3) and 19 C.F.R. § 165.6, CBP may apply an adverse inference if a party to the investigation that filed an allegation, an importer, or a foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with

¹⁶⁴ See Agri-Fab's letter, "Re: EAPA Consolidated Case No. 8201; Letter In Lieu Of Written Arguments," dated April 28, 2026.

¹⁶⁵ *Id.*

¹⁶⁶ *Id.* See also the VFI and CBP's letter, "Re: EAPA Consolidated Case 8150 – Notice of Determination as to Evasion," dated April 8, 2026.

¹⁶⁷ See 19 U.S.C. § 1517(a)(5)(A); see also 19 C.F.R. § 165.1.

an RFI from CBP. In applying an adverse inference against an eligible party, CBP may use the facts otherwise available to make a final determination as to evasion pursuant to 19 U.S.C. § § 1517(c)(1)(A) and 19 C.F.R. § 165.27. Moreover, an adverse inference may be used with respect to U.S. importers, foreign producers, and manufacturers “without regard to whether another person involved in the same transaction or transactions under examination has provided the information sought....”¹⁶⁸

Because none of the Importers or the supplier, Shanghai Aote, ever responded to CBP’s RFIs, despite being given multiple opportunities to submit such responses, CBP’s ability to obtain information for its investigation was impeded significantly.¹⁶⁹ The RFIs issued to the Importers and the supplier included questions and requests for documentation relating to the Importers’ purchases and sales of covered merchandise, valuation of the imported merchandise, and Customs entry and compliance, among other information. Each Importer RFI also listed specific entries made by the recipient Importer and the RFI to Shanghai Aote listed specific BOL numbers for shipments from Shanghai Aote.¹⁷⁰ Both types of RFI requested that the parties provide relevant supporting documentation for each entry or shipment, as applicable.¹⁷¹ Without any RFI responses from the Importers or Shanghai Aote, CBP could not obtain any information about the characteristics of the covered merchandise, the sourcing of the covered merchandise, or the prices the Importers paid for covered merchandise.¹⁷² Without this information, CBP could not determine which items in the Importers’ entries were covered merchandise, where the importer’s merchandise was manufactured, or whether the covered merchandise in these entries were undervalued. Therefore, the Importers’ and Shanghai Aote’s failure to respond to the RFIs constituted a failure to cooperate and comply with the RFIs to the best of their ability and significantly impeded the investigation.

EAPA’s regulations at 19 C.F.R. § 165.6(a) state that if “the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP, CBP may apply an inference adverse to the interests of that party in selecting from among the facts otherwise available to make the determination as to evasion....”¹⁷³ Accordingly, CBP is drawing adverse inferences from the facts otherwise available on the record to the Importers and Shanghai Aote.

EAPA’s regulations also state at 19 C.F.R. §165.6(b) that “{a}n adverse inference used under paragraph (a) may include reliance on information derived from an allegation, a prior determination in another CBP investigation, proceeding, or action that involves evasion of AD/CVD orders, or any other available information on the administrative record.”¹⁷⁴ Applying adverse inferences to Shanghai Aote and all 11 Importers subject to this investigation, CBP relies on the Allegor’s VFI and evidence cited in the NOI, as summarized below, to determine there is

¹⁶⁸ See 19 U.S.C. § 1517(c)(3)(B).

¹⁶⁹ See Importer RFIs, Supplier RFI, and the FedEx Memo.

¹⁷⁰ See Importer RFIs and Supplier RFI.

¹⁷¹ See Importer RFIs and Supplier RFI.

¹⁷² See Importer RFIs and Supplier RFI.

¹⁷³ See also 19 USC 1517(c)(3)(A).

¹⁷⁴ See 19 C.F.R. §165.6(b).

substantial evidence on the record that the merchandise entered by the Importers is Chinese origin and covered by the *Order*.¹⁷⁵

Chasoe

Chasoe did not respond to the CF-28 or RFIs, but DIS documents for entry 6090, imported by Chasoe, show that it imported Chinese-origin “lawn sweepers” from Shanghai Aote.¹⁷⁶ Chasoe declared this entry as type 01, not subject to AD/CVD duties,¹⁷⁷ even though Chinese lawn sweepers are a type of covered merchandise covered by the *Order* if towed.¹⁷⁸ The allegor provided screenshots in the Allegations showing that the lawn sweepers, aerators, and dethatchers sold on an e-commerce platform similar to Shanghai Aote’s that are towed.¹⁷⁹

Eminent World

Eminent World’s response to the CF-28 for entry 9803 shows that Eminent World imported lawn sweepers classified under HTS number 8479.89.9599 from China while declaring the merchandise in this entry as type 01, not subject to AD/CVD duties.¹⁸⁰ Because lawn sweepers from China are a type of TBLG covered by the *Order* if towed,¹⁸¹ and because Eminent World provided no evidence that its lawn sweepers were not towed.¹⁸² Furthermore, 8479.89.9599 is the same HTS number other Importers used to misclassify covered merchandise,¹⁸³ this constitutes substantial evidence that Eminent World failed to pay applicable AD duties by declaring this entry as type 01.¹⁸⁴

Faster Bat

Faster Bat’s CF-28 Response for entry number 6085 contained a list of products including “lawn sweepers” incorrectly classified under HTS number 8479.89.9599 from Shanghai Aote.¹⁸⁵ Faster Bat also declared these lawn sweepers as Chinese-origin, but filed entry 6085 as type 01, not subject to AD/CVD duties, and thus, failed to pay applicable duties on this entry.¹⁸⁶ Faster Bat also imported other entries with entry lines classified under HTS 8479.89.9599.¹⁸⁷ These facts, combined with Faster Bat’s failure to respond to the CBP’s RFI, constitute substantial evidence of evasion.¹⁸⁸

¹⁷⁵ See generally the NOI.

¹⁷⁶ See the DIS Memo at Attachment 3.

¹⁷⁷ *Id.*

¹⁷⁸ See the *Order*.

¹⁷⁹ See the Allegations at Attachment A-1 through A-10.

¹⁸⁰ See Eminent World’s CF-28 Response.

¹⁸¹ See the *Order*.

¹⁸² See the FedEx Memo.

¹⁸³ See Eminent World’s CF-28 Response, the DIS Memo, Faster Bat’s CF-28 Response, Eminent World’s CF-28 Response, and Zenith’s CF-28 Response for entries 1256 and 1462. See also the *Order*.

¹⁸⁴ See Eminent World’s CF-28 Response.

¹⁸⁵ See Faster Bat’s CF-28 Response. See also the Post-Receipt Reports.

¹⁸⁶ See the Post-Receipt Reports.

¹⁸⁷ *Id.*

¹⁸⁸ See the Faster Bat RFI and the FedEx Memo.

Fine Tune

According to Fine Tune's CF-28 Response, it imported Chinese compost spreaders from Shanghai Aote in entry number 3389.¹⁸⁹ Compost spreaders (if towed) are a type of TBLG covered by the *Order*.¹⁹⁰ The Allegations demonstrated that the type of spreader Shanghai Aote sells is described in the same way as a towed model, and therefore, there is evidence that the compost spreaders Fine Tune imported from Shanghai Aote were covered merchandise.¹⁹¹ The Importers' and Shanghai Aote's failure to provide requested information about whether or not their compost spreaders were towed, also contributes to this inference.¹⁹² However, Fine Tune declared this entry as type 01, and thus, failed to pay applicable AD/CVD duties.¹⁹³ Notably, Fine Tune identified Shanghai Aote as the shipper of this merchandise, the same supplier who sold TBLGs to other Importers.¹⁹⁴ These facts, in combination, constitute substantial evidence that Fine Tune evaded the *Order* by failing to pay applicable AD duties.

Inchoi

Inchoi never submitted a CF-28 response,¹⁹⁵ or an RFI response,¹⁹⁶ even though CBP afforded Inchoi multiple opportunities to respond to the RFI.¹⁹⁷ Data from CBP systems shows that Inchoi imported merchandise classified as 8479.89.9599 from Shanghai Aote in China, while declaring it as type 01.¹⁹⁸ This is the same HTS number other Importers used to misclassify lawn sweepers, a type of TBLG if towed, from Shanghai Aote.¹⁹⁹ Thus, there is substantial evidence that Inchoi evaded *the Order* by failing to pay applicable AD duties.

Magic King

Magic King's CF-28 Response for entry 6477 included a list of products in the entry, including 476 total lawn sweepers, which according to the list were classified under HTS number 8479.89.9599.²⁰⁰ Although an incorrect HTS number for lawn sweepers, this HTS number is the same one other Importers used to misclassify lawn sweepers.²⁰¹ Furthermore, lawn sweepers are a type of TBLG, if towed,²⁰² and because Magic King imported them from Shanghai Aote, there

¹⁸⁹ See Fine Tune's CF-28 Response. See also the Post-Receipt Reports.

¹⁹⁰ See the *Order*.

¹⁹¹ See the Allegations at Attachment A-8.

¹⁹² See the FedEx Memo, Supplier RFI and Importer RFIs.

¹⁹³ See the Post-Receipt Reports.

¹⁹⁴ *Id.*

¹⁹⁵ See the Inchoi CF-28.

¹⁹⁶ See Inchoi RFI and the FedEx Memo.

¹⁹⁷ See the FedEx Memo.

¹⁹⁸ See the Post-Receipt Report for EAPA 8215.

¹⁹⁹ See Eminent World's CF-28 Response, the DIS Memo, Faster Bat's CF-28 Response, Eminent World's CF-28 Response, and Zenith's CF-28 Response for entries 1256 and 1462. See also the *Order*.

²⁰⁰ See Magic King's CF-28 Response..

²⁰¹ See DIS entry packages for entry numbers 6090, 9700, and 9817. See also Eminent World's CF-28 Response, Faster Bat's CF-28 Response, Onerich's CF-28 Response, and Zenith's CF-28 Response.

²⁰² See DIS entry packages for entry numbers 6090, 9700, and 9817. See also Eminent World's CF-28 Response, Faster Bat's CF-28 Response, Onerich's CF-28 Response, and Zenith's CF-28 Response.

is evidence that Magic King imported covered merchandise.²⁰³ Data from CBP systems shows that Magic King imported Chinese merchandise classified as 8479.89.9599 from Shanghai Aote in other entries, while declaring them as type 01, even though they were from China.²⁰⁴ This information, combined with Magic King's failure to submit an RFI response,²⁰⁵ contributes to substantial evidence that Magic King evaded the *Order* by misclassification and failure to pay duties on its entries of TBLGs from China.

Newway

Newway did not respond to the CF-28,²⁰⁶ or RFI,²⁰⁷ but according to information from CBP systems, Newway imported Chinese goods classified as HTS number 8479.89.9599 from Shanghai Aote in China, while declaring the entries containing this HTS number as type 01.²⁰⁸ Notably, HTS 8479.89.9599 is the same HTS number other importers used to misclassify lawn sweepers, a type of TBLG covered by the *Order*.²⁰⁹ The fact that Newway sourced these lawn sweepers from Shanghai Aote, the same supplier who supplied TBLGs to the other Importers further supports a determination that Newway imported covered merchandise while not paying applicable AD duties.²¹⁰

Toyarr

Toyarr did not respond to the CF-28 or RFIs,²¹¹ but DIS documents for entries 9817²¹² and 9700²¹³ show that Toyarr imported Chinese "lawn sweepers" in these entries.²¹⁴ CBP data also shows that Toyarr imported these entries from Shanghai Aote while classifying these lawn sweepers as 8479.89.9599 and declared these entries as type 01.²¹⁵ This information constitutes substantial evidence of evasion because Chinese lawn sweepers are a type of covered merchandise if towed, and HTS 8479.89.9599 is the same incorrect HTS number Toyarr and the other Importers used to misclassify lawn sweepers from Shanghai Aote.²¹⁶

Unitype

²⁰³ See the Allegations at Attachments A-1 through A-4.

²⁰⁴ See the Post-Receipt Reports.

²⁰⁵ See Magic King RFI and the FedEx Memo.

²⁰⁶ See the Newway CF-28.

²⁰⁷ See Newway RFI and the FedEx Memo.

²⁰⁸ See the Post-Receipt Reports.

²⁰⁹ See the *Order*.

²¹⁰ See the Post-Receipt Reports, DIS entry packages for entry numbers 6090, 9700, and 9817, Chasoe's CF-28 Response, Onerich's CF-28 Response, and Zenith's CF-28 Response.

²¹¹ See Toyarr RFI and the FedEx Memo.

²¹² See the DIS Memo at Attachment 1.

²¹³ *Id.* at Attachment 2.

²¹⁴ *Id.* at Attachments 1 and 2.

²¹⁵ See the Post-Receipt Reports.

²¹⁶ *Id.*

Unitype did not submit a response to the CF-28²¹⁷ or the RFI CBP sent, even though CBP afforded Unitype multiple opportunities to respond to the RFI.²¹⁸ According to information from CBP systems, Unitype imported Chinese goods classified as HTS 8479.89.9599 from Shanghai Aote in China, while declaring the entries containing this HTS number as type 01.²¹⁹ Notably, HTS 8479.89.9599 is the same HTS number other importers used to classify lawn sweepers, a type of TBLG covered by the *Order*.²²⁰ The fact that Unitype sourced these lawn sweepers from Shanghai Aote, the same supplier who supplied TBLGs to the other Importers, combined with Unitype's failure to respond to the CF-28 and RFI²²¹ supports a determination that Unitype imported covered merchandise while not paying applicable AD duties.²²²

Zenith

Zenith provided lists of goods imported in entry numbers 1256 and 1462 as part of its CF-28 response for these entries. These lists included Chinese "lawn sweepers" and "surface aerators."²²³ According to CBP data, Zenith imported these entries from Shanghai Aote.²²⁴ CBP data also shows that Zenith declared the merchandise in these entries as type 01, and therefore, failed to pay applicable AD duties.²²⁵ Because lawn sweepers and surface aerators are both covered merchandise if towed and imported from China, the record contains substantial evidence that Zenith evaded the *Order*.²²⁶

The evidence on the administrative record, as described above, amounts to substantial evidence of evasion by all 11 of the Importers, as Shanghai Aote and the Importers provided no clarification or rebuttal of that evidence, though given multiple opportunities to participate in the investigation.²²⁷ As discussed above, CBP is drawing inferences adverse to the 11 Importers from the information submitted to CBP in the Allegation and other information obtained during CBP's investigation to conclude that the entries the Importers imported contained Chinese origin TBLGs covered by the *Order* while declaring them as type 01 and failing to pay AD/CVD duties.²²⁸

Based on information from the Alleger's VFI, CBP also concludes that the Importers undervalued their covered merchandise upon entry and misclassified some of the items in each entry. The Alleger demonstrated that unit values of \$169.99 to \$235.99 are reasonable values for tow-behind aerators and spreaders, while \$309.99 is a reasonable value for lawn sweepers.²²⁹ However, the CF-28 Responses and DIS entry packages show that the Importers entered their

²¹⁷ See the Unitype CF-28.

²¹⁸ See Unitype RFI and the FedEx Memo.

²¹⁹ See the Post-Receipt Reports.

²²⁰ See the *Order*.

²²¹ See Unitype RFI and the FedEx Memo.

²²² See the Post-Receipt Reports, DIS entry packages for entry numbers 6090, 9700, and 9817, Chasoe's CF-28 Response, Onerich's CF-28 Response, and Zenith's CF-28 Response.

²²³ See Zenith's CF-28 Response for entries 1256 and 1462.

²²⁴ *Id.* See also the Post-Receipt Reports.

²²⁵ See Zenith's CF-28 Response for entries 1256 and 1462. See also the Post-Receipt Reports.

²²⁶ See the *Order*.

²²⁷ See the Importer RFIs.

²²⁸ See 19 U.S.C. § 1517(c)(3)(B) -(C); see also 19 C.F.R. § 165.6(c); see also the Initiation Memo and the NOI.

²²⁹ See the VFI at 17.

TBLGs with unit values ranging from \$3.52 to \$12.25. This means that these entries were undervalued and the Importers' declared unit values on 7501s and in the CF-28 Responses are not a reliable source of information about the appropriate values for TBLGs.²³⁰ Accordingly, CBP is relying on the highest quantity and highest per-unit value on the record of this investigation for any lawn groomer product to determine the amount of AD duties owed. The highest unit value for a lawn groomer on the record comes from information in the Alleger's VFI submission showing that lawn groomers for sale on an e-commerce platform had a unit value of \$309.99, as explained above.²³¹ Furthermore, the CF-28 Responses show that the Importers misclassified their TBLGs using incorrect HTS numbers, and the values listed in these responses are, therefore, unreliable.²³² After reviewing the DIS documents CBP placed on the record of this investigation, the CF-28 Responses, and data from its own systems, CBP determines that the highest quantity of any lawn groomer product on the record of this investigation is 476 lawn sweepers.²³³ Because there is record evidence that the Importers misclassified and undervalued their imports of covered merchandise, CBP determines based on adverse facts available, that each entry contained 476 TBLGs valued at \$309.99 subject to the China-wide AD rate of 386.28 percent to determine the amount of AD duties due.

Under 19 U.S.C. § 1517(c)(1)(A), to reach a final determination as to evasion, CBP must "make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion." Evasion is defined as "the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material and that results in any cash deposit or other security of any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise."²³⁴ As discussed in this determination and in the NOI, the record of this investigation contains evidence that the Importers entered TBLGs covered by the *Order* into the United States through evasion, resulting in the avoidance of applicable AD/CVD cash deposits or other security. Based on that evidence, and the application of adverse inferences because of Shanghai Aote's and the Importers' failure to cooperate with the investigation, CBP concludes there is substantial evidence of evasion by misclassification, failure to pay AD duties, and undervaluation.

Determination as to Evasion

As detailed above, based on the totality of information contained in the administrative record and the Importers' and Shanghai Aote's failure to respond to RFIs, CBP determines there is substantial evidence that the Importers evaded the *Order* by importing TBLGs of Chinese origin into the United States, misclassifying them, failing to declare them as covered merchandise, and failing to pay the required AD/CVD cash deposits.

²³⁰ See the CF-28 Responses and the DIS Entry packages.

²³¹ See the VFI at 17 and Exhibit B.

²³² See the CF-28 Responses.

²³³ See the DIS Memo, Faster Bat's CF-28 Response, Fine Tune's CF-28 Response, Magic King's CF-28 Response, Onerich's CF-28 Response, Zenith's CF-28 Response for entries 1256 and 1462, and the Post-Receipt Reports.

²³⁴ See 19 C.F.R. § 165.1; see also 19 U.S.C. § 1517(a)(5)(A).

Actions Taken Pursuant to the Affirmative Determination as to Evasion

In consideration of CBP's determination that substantial evidence demonstrates that the Importers entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries covered by this investigation, until instructed to liquidate. For those entries previously extended in accordance with Interim Measures, CBP will rate adjust and change those entries to type 03, covered by the *Order*, and continue suspension until instructed to liquidate these entries. CBP may also evaluate the Importers' continuous bonds in accordance with CBP's policies. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP's Office of Trade